



2025:DHC:250



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* **IN THE HIGH COURT OF DELHI AT NEW DELHI*****Date of Decision: 16.01.2025***+ **RC.REV. 296/2018, CM APPL. 26468/2018****TARZAN (INDIA) CHEMICAL INDUSTRIES**PetitionerThrough: Mr. Anmol Singh, Adv. with Mr.
Tarsem Chand Singla in-person

versus

O.P JINDAL

.....Respondent

Through: Mr. Hitesh Kumar, Advocate.

CORAM:**HON'BLE MS. JUSTICE TARA VITASTA GANJU****TARA VITASTA GANJU, J.: (Oral)**

1. The proprietor of Petitioner, Mr. Tarsem Chand Singla is physically present in the Court today.
2. Learned Counsel for the Petitioner/tenant on instructions from the proprietor of Petitioner/tenant submits that the Petitioner/tenant needs some additional time to vacate the subject premises.
 - 2.1 Learned Counsel for the Respondent/landlord, on instructions, submits that the Respondent/landlord is agreeable to allow time up to 30.04.2025, subject to lump-sum payment of user and occupation charges in the sum of Rs.40,000/-. Learned Counsel for the Petitioner/tenant submits that this offer is acceptable to the Petitioner/tenant.
3. The Petitioner/tenant agrees to pay lump-sum user and occupation charges in the sum of Rs.40,000/- on or before 31.03.2025.
4. In view thereof, let an Undertaking by way of an Affidavit be filed by all four Petitioner/tenant, within a period of one week undertaking that:
 - (i) The Petitioners/tenant shall hand over the vacant physical possession



2025:DHC:250



of the premises i.e., shop bearing No.C/67, Shivaji Park, New Delhi as shown in red color in the site plan annexed with the Eviction Petition [hereinafter referred to as “subject premises”].

(ii) The vacant, physical and peaceful possession of the subject premises will be handed over by the Petitioner/tenant to the Respondent/landlord on or before 30.04.2025;

(iii) The lump-sum use and occupation charges shall be paid by the Petitioner/tenant in the sum of Rs.40,000/- shall be paid on or before 31.03.2025;

(iv) The Petitioner/tenant undertakes and confirms that the entire subject premises is under his occupation and control;

(v) The Petitioner/tenant will pay all the utility bills such as electricity and water and any other dues, for the subject premises till the date of handing over of the vacant, physical and peaceful possession thereof;

(vi) The Petitioner/tenant undertakes that he will not create any third-party rights or part with possession of the subject premises and that he shall not damage the subject premises in any manner whatsoever prior to its vacation;

(vii) The Petitioner/tenant shall remain bound by the aforesaid Undertaking.

5. An advance copy of the Undertaking shall be served on the Respondent/landlord.

6. All payments shall be made by the Petitioner/tenant into the bank account of the Respondent/landlord. The details of the bank account shall be provided by the learned Counsel for the Respondent/landlord to the learned Counsel for the Petitioner/tenant on his email address, within two days.



2025:DHC:250



7. Subject to the Petitioner/tenant filing the aforesaid Undertaking before this Court within one week from today, execution of order dated 23.01.2018 passed in E. No.26302/16 captioned **Sh. O. P Jindal v. Tarzan (India) Chemicals Industries** [hereinafter referred to as the “Eviction Order”] shall remain stayed till 30.04.2025.

8. In the event that the Petitioners/tenants default in complying with the terms of the Undertaking filed, the interim protection granted hereinabove shall automatically stand dissolved and Respondent/landlord will be at liberty to take recourse to appropriate proceedings for recovery of possession, recovery of arrears and for recovery of the full user charges/damages from the Petitioner/tenant at market rate for the period from the date of the Eviction Order, in accordance with law.

9. The Revision Petition is disposed of in the foregoing terms. Pending Application stands closed.

10. List the matter for compliance on 31.01.2025.

11. The parties shall act based on the digitally signed copy of the order.

TARA VITASTA GANJU, J

JANUARY 16, 2025/jn/pa

[Click here to check corrigendum, if any](#)